

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
OFFICES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR
PRESENTENCE REPORT COUNTERFACTUAL BRANCH — NEVER
FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED
FICTIONAL DOCKET SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED**

Never-Filed Appellate Case-Opening and Limited-Remand Order

Never-entered date: March 16, 2026 **Isolated synthetic docket:** SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED **Never-filed document number:** 2

The fictional Fourth Circuit exercise clerk opens this isolated matter solely from the March 12 counterfactual notice. The source was never filed in the actual district case, and this order creates no entry in the actual appellate docket.

The notice identifies a February 25 judgment and a direct district-clerk receipt on March 12. On the current calendar, March 11 was day 14 and March 12 was day 15. The packet also negates an earlier Rule 4(c) deposit, any Rule 4(b)(3) tolling motion, and clerk inaccessibility.

Because Rule 4(b)(4) permits the district court to extend time upon a finding of excusable neglect or good cause, with or without a motion, the isolated appeal is remanded for that limited determination. Appellate administration is held in abeyance, and no merits schedule begins until the certified return. Slate, Alder, and March issue this procedural order without deciding timeliness, waiver, or any sentencing claim.

Nature of the Limited Inquiry

Rule 4(b)'s deadline is a mandatory claim-processing rule rather than a jurisdictional limit. See *United States v. Marsh*, 944 F.3d 524 (4th Cir. 2019). That classification does not eliminate the express extension procedure in Rule 4(b)(4) or permit the appellate court to assume facts the district court has not found.

The remand is therefore confined to two questions: whether the one-day delay resulted from excusable neglect, and whether good cause otherwise warrants an extension. The district court may act without a formal motion, but it must make an affirmative finding before extending the filing period.

Serrano shall submit by March 18 a statement identifying whether he requests an extension and every circumstance offered as an excuse. The fictional United States may respond if it has relevant timing facts. Judge Elara Venn shall enter findings by March 20 on the existing synthetic record.

The district court shall not revisit the conviction, sentence, role adjustment, appeal waiver, or allocution issue. Those subjects exceed this narrow return. The limited remand also does not authorize an entry on a real docket or access to any genuine filing system.

Required Findings and Record Return

The district court shall determine the date and method of receipt, whether any Rule 4(c) deposit occurred, whether a Rule 4(b)(3) motion affected time, and whether the clerk was inaccessible on the final day. It shall then decide separately whether excusable neglect or good cause supports relief under Rule 4(b)(4).

If the court grants an extension, it shall state the finding and the period allowed. If it declines, it shall state that result expressly. A simple description of the notice as late will not substitute for resolution of both authorized grounds.

Tessa Wren shall certify the findings and relevant branch documents to Maela Cross by March 23. The return must remain labeled with the isolated docket number and must not be entered in the actual district or appellate matter. No sealed presentence volume is necessary for the timing inquiry.

The appellate panel retains administrative control of this isolated exercise. After the return, the clerk will resume the matter and allow the parties to address any properly invoked threshold rule. Until then, the court neither dismisses the appeal nor decides whether a party has preserved a claim-processing objection.

Abeyance, Service, and Isolation

The isolated appellate matter is held in abeyance through the certified return. The clerk shall serve this never-entered order on Celia Arden, Bram Ives, Judge Venn, and Tessa Wren through the fictional training channel. No genuine address, account, credential, or electronic-filing direction is included.

The order permits no discovery and requires no hearing unless Judge Venn determines one is useful. Written statements may supply the complete record because the timing facts are narrow. Any hearing would remain limited to excusable neglect and good cause.

This order is procedural, prompt, and neutral. It does not treat the March 12 notice as timely, excuse it, or direct dismissal. It recognizes that the government has not yet made a substantive disposition filing and expresses no view about whether or how Rule 4(b) will be invoked after the return.

The fictional panel enters the order on March 16, 2026, only in SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED. The actual March 11 notice and every actual-docket proceeding remain untouched. Maela Cross certifies the isolated entry as never filed anywhere else.